

CHAPTER 28

Army and Air Force (Annual) Act, 1949

ARRANGEMENT OF SECTIONS

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An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force. [26th April 1949.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law:

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of five hundred and fifty thousand:

And whereas it is adjudged necessary that a body of air forces should be continued for the purposes aforesaid, and that the whole number of such forces should consist of two hundred and fifty-five thousand:

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid:

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or

vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea:

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow:

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-nine on the following days:—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1949.

Army Act
and Air Force
Act to be in
force for
specified times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say:—

- (a) within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, nineteen hundred and forty-nine, to the thirtieth day of April, nineteen hundred and fifty, both inclusive; and
- (b) elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, nineteen hundred and forty-nine, to the thirty-first day of July, nineteen hundred and fifty, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or the Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3.—(1) Amendments of the Army Act or of the Air Force Act contained in this or any other Act continuing the first-mentioned Acts shall, subject to any express provision to the contrary, come into operation on the day on which, apart from the Act containing the amendments, the Army Act and the Air Force Act would expire in Great Britain.

Date for coming into operation of amendments of Army and Air Force Acts.

(2) Subsection (1) of section fifteen of the Army and Air Force (Annual) Act, 1932 (which provides for amendments coming into operation in any place as from the date from which the Army Act and the Air Force Act are continued by the amending Act), is hereby repealed.

22 & 23 Geo. 5. c. 22.

AMENDMENTS OF ARMY AND AIR FORCE ACTS

4. In subsection (2) of section sixty-three of the Army Act (which provides that a person sentenced to detention under that Act shall undergo the term of his detention either in a detention barrack or in military custody) after the words "or in military custody" there shall be inserted the words "or in air force custody"; and in subsection (2) of section sixty-three of the Air Force Act (which makes corresponding provision as respects that Act) after the words "or in air force custody" there shall be inserted the words "or in military custody".

Power to keep persons sentenced to detention under Army Act in air force custody, and corresponding provision for Air Force Act.

5.—(1) At the end of section sixty-three of the Army Act (which provides for the service of sentences of imprisonment and detention in prisons, detention barracks or other military custody) there shall be added the following subsection:—

Application of rules under s. 132 to all persons in military or air force custody.

"(3) Subsections (2), (2A) and (3) of section one hundred and thirty-two of this Act shall apply to persons undergoing imprisonment or detention in other military custody as they apply to persons undergoing imprisonment or detention in military prisons or detention barracks; and references in those subsections to a prison or to detention barracks shall include references to any place where a person is or has been in military custody by virtue of a sentence of imprisonment or detention."

(2) At the end of section sixty-three of the Air Force Act (which makes corresponding provision as respects sentences under that Act) there shall be added a subsection in other respects similar to the subsection hereinbefore set out, but modified by the substitution of the words "air force" for the word "military" in each place where it occurs.

Provisions as to persons unlawfully at large.

6. After section sixty-seven of the Army Act, and after section sixty-seven of the Air Force Act, there shall be inserted the following:—

"Persons unlawfully at large"

67A.—(1) Any person who, having been sentenced by a court-martial to imprisonment, is unlawfully at large may (without prejudice to any other power of arrest) be arrested by any constable without warrant and taken to any place in which he may be required in accordance with law to be detained.

(2) Where any person sentenced as aforesaid to imprisonment, or sentenced as aforesaid or by his commanding officer to detention, has become unlawfully at large at any time during the period for which he is liable to be detained in pursuance of the sentence, then, unless the authority hereinafter specified otherwise directs, no account shall be taken, in calculating the period for which he is liable to be so detained, of any time elapsing after he became at large and before either he is taken into naval, military or air force custody or he is received into custody (whether in pursuance of the same sentence or of a sentence of any other court) in a prison or other institution to which the Prison Acts, 1865 to 1898 or the Prisons (Scotland) Acts, 1860 to 1926 apply.

(3) The authority referred to in the last foregoing subsection is—

- (a) in relation to a person sentenced by court-martial, the authority which under subsection (2) of section fifty-seven of this Act has power to remit the sentence;
 - (b) in relation to a person sentenced by his commanding officer, that officer."
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